

Court No. - 33

Case :- WRIT - C No. - 18215 of 2025

Petitioner :- Satya Prakash Katara

Respondent :- Junior Engineer Dakshinnanchal Vidyut Vitram Nigam Ltd. And 3 Others

Hon'ble Prakash Padia,J.

1. Order passed by the Permanent Lok Adalat, Mathura dated 15.02.2025 in Case No. 42 of 2024 (Satya Prakash Katara vs. Junior Engineer and others) is under challenge in the present writ petition.

2. By the aforesaid order, the claim petition filed by the petitioner was partly allowed and the respondent-Electricity Department was directed to connect the electricity connection of the petitioner after the petitioner will deposit the admitted dues. It is stated in the aforesaid order that the sum of Rs.1,10,224/- is due upon the petitioner.

3. Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of Respondent-Electricity Department placed before this Court an order dated 14th May, 2024 according to which a sum of Rs.1,07,838/- is due upon the petitioner.

4. After going through the aforesaid documents, counsel for the petitioner confined his prayer and prayed that some easy installments should be made for depositing of the aforesaid amount. He placed reliance upon Clause 6.15 of the U.P. Electricity Supply Code, 2005 and argued that recovery of arrears would not be recoverable after the period of two years from the date when such sum became first due unless such sum has been shown continuously as recoverable as arrears of charges of electricity supplied, and the supply of the electricity shall not be disconnected by licensee for this reason.

5. In response to the same Shri Baleshwar Chaturvedi, learned counsel appearing on behalf of Respondent-Electricity placed reliance upon Clause 4.39 of the U.P. Electricity Supply Code, 2005 in which procedure for re-connection has been provided. It is stated in the aforesaid clause that in case the petitioner will apply for new connection the same should be provided to him after depositing the due upon the petitioner. He also placed reliance upon Clause-6.14 of the U.P. Electricity Supply Code, 2005 in which there is a provision for installment facility. It is stated under sub-clause (ii) of Clause 6.14 of the Code, 2005 that no officer below the rank of Executive Engineer shall grant installments. It is further provided that Executive Engineer, / DGM/ and General Manager can grant up to maximum of two, three or four monthly installments respectively. However first installment shall

not be less than 40% of the total amount. Clause-6.14 of the U.P. Electricity Supply Code, 2005 reads as follows:-

"6.14 Installment Facility

(i) The Licensee may extend the facility of instalments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

(ii) No officer below the rank of Executive Engineer shall grant instalments. The Executive Engineer/ DGM/ and General Manager can grant upto maximum of two, three or four monthly installments respectively. However, first installment shall not be less than 40% of the total amount. Where the amount for installments exceeds Rs. 10,000/- (ten thousand) the consumer shall be asked to deposit post dated cheques of the installments to the Licensee."

6. Heard counsel for the parties and perused the record.

7. In the facts and circumstances of the case and also in the interest of justice without interfering with the order passed by the Permanent Lok Adalat, Mathura which is under challenge, the present writ petition is **disposed of finally** directing the Respondent to provide new Electricity connection to the petitioner in case he will deposit the sum of Rs.40,000/- within a period of **one month** from today. If it is so, the Respondent-Electricity department will reconnect the Electricity connection of the petitioner. Petitioner is further directed to deposit remaining amount in three easy monthly installment.

Order Date :- 8.7.2025

Swati